

Press and Registration of Periodicals Rules, 2024

Source: <https://indiankanoon.org/doc/39683514/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

Press and Registration of Periodicals Rules, 2024

UNION OF INDIA

India

Press and Registration of Periodicals Rules, 2024

Rule G-S-R-151-E of 2024

Published on 1 March 2024

Not commenced

[This is the version of this document from 1 March 2024.]

[Note: The original publication document is not available and this content could not be verified.]

Whereas, the Draft Press and Registration of Periodicals Rules, 2024 was published vide notification of the Government of India in the Ministry of Information and Broadcasting number S.O. 73(E), dated the 5th January, 2024 inviting comments /suggestions from stakeholders and general public on these draft Rules, proposed to be issued under the powers conferred under section 19 of the Press and Registration of Periodicals Act, 2023 (51 of 2023) before expiry of thirty days from the publication of the said notification;

And whereas, copies of the said Gazette were made available to the public on the 5th January, 2024;

And whereas, the comments and suggestions received within the said period from the public and stakeholders in respect of the said draft rules have been duly considered by the Central Government;

Now, therefore, in exercise of the powers conferred by section 19 of the Press and Registration of Periodicals Act, 2023, the Central Government hereby makes the following rules, namely:-

1.

Short title, extent and commencement.

(1) These rules may be called the Press and Registration of Periodicals Rules, 2024.

(2) They shall come into force from the date of their publication in the Official Gazette.

2.

Definitions.

(1) In these rules, unless the context otherwise requires, -

(a)

"Act"

means the Press and Registration of Periodicals Act, 2023 (51 of 2023);

(b)

"Bharat Kosh"

means the online service window of the Government of India to deposit any fees or fine or other money into the Government Account;

(c)

"Central Bureau of Communication"

means the attached office of the Central Government for dissemination of information on Government policies and programmes through advertising and outreach activities using various vehicles of communication including, audio-visual, print, electronic, digital, exhibitions and outdoor activities;

(d)

"entity"

means an entity referred to in section 4 of the Act;

(e)

"Financial year"

means the period beginning from the 1st day of April and ending on the 31st day of March every year;

(f)

"National Single Window System"

means the digital platform of the Central Government (<https://www.nsws.gov.in>) to guide persons in identifying and applying for various approvals, permissions and registrations;

(g)

"Press Information Bureau"

means the attached office of the Central Government to disseminate information to print, electronic and social media on Government policies, programmes, initiatives and achievements, through various interventions and activities including press releases, press notes, feature articles, backgrounders, press briefings, interviews, press conferences and press tours;

(h)

"Press Sewa Portal"

means the online portal of the Press Registrar General for receiving various applications, intimations, and such other documents, including the following, namely: -

(i) intimation by printer of a periodical;

(ii) registration of facsimile edition of a foreign periodical;

(iii) application by a publisher for obtaining a certificate of registration of a periodical;

(iv) application for revision of certificate of registration;

(v) application for transfer of ownership of certificate of registration;

(vi) furnishing annual statement by the publisher of a periodical;

(vii) guidelines for title allotment;

(viii) procedure for desk audit for verification of circulation of a periodical.

(2) All other words and expressions used herein and not defined but defined in the Act shall have the same meanings respectively assigned to them in the Act.

3.

Intimation by a printer.

(1) A printer of a periodical shall, within thirty days of starting a printing press of a periodical, send an intimation on the

Press Sewa Portal along with the particulars and documents specified therein, to the Press Registrar General and the specified authority within whose jurisdiction the printing press is situated.

(2) Where, after sending the intimation under sub-rule (1), any changes take place in the particulars mentioned in the intimation, the printer shall inform the Press Registrar General and the specified authority of the changes of the particulars.

(3) Where the change in particulars involves change in location of the printing press falling under the local jurisdiction of another specified authority, the printer shall send a fresh intimation on the Press Sewa Portal to the Press Registrar General and the new specified authority, and also inform the original specified authority.

4.

Registration of facsimile edition of a foreign periodical.

(1) Any entity which intends to publish a facsimile edition of a foreign periodical in India shall apply on the National Single Window System for obtaining approval from the Central Government for such publication, along with all particulars, documents and fee specified therein, in accordance with the guidelines available on that system.

(2) The Central Government shall, after seeking such additional information, as it deems necessary, grant approval to the entity for publication of the facsimile edition, subject to such terms and conditions as the Central Government may deem fit and communicate the same to the entity on the National Single Window System.

(3) Where the Central Government is of the opinion that approval cannot be granted, it shall by a written order convey its decision, along with reasons for refusal, and communicate the same to the entity on the National Single Window System.

(4) The entity shall, within fifteen days of grant of approval under sub-rule (2), make an application to the Press Registrar General on the Press Sewa Portal for the grant of certificate of registration for publication of the facsimile edition of the foreign periodical in India, along with such documents as may be specified on the Press Sewa Portal, and a fee of rupees ten thousand payable to Bharat Kosh through any mode of payment specified therein.

(5) The Press Registrar General shall verify the application, and after satisfying itself of the correctness of the application and of the additional information, if any, obtained from the entity and taking into consideration the comments, if any, of the Central Government, issue a certificate of registration to the entity for the publication in India of facsimile edition of the foreign periodical.

(6) The entity shall commence publication of the facsimile edition in India only after it is granted a certificate of registration under sub-rule (5) and if the entity has commenced publication of facsimile edition before grant of certificate, the Press Registrar General may refuse to grant certificate of registration to such entity and inform the Central Government of such publication.

(7) The Central Government may on its own or based on information received from the Press Registrar General or any other authority regarding publication of the facsimile edition in India before the grant of certificate of registration under sub-rule (5), suspend or cancel the approval granted by it to such entity under sub-rule (2).

5.

Grant of certificate of registration of a periodical.

(1) A publisher intending to start a periodical shall make an online application to the Press Registrar General on the Press Sewa Portal along with such documents as may be specified therein and a fee of rupees one thousand payable to Bharat Kosh through any mode of payment specified therein, while ensuring adherence to the guidelines on title allotment issued by the Press Registrar General, available on the Press Sewa Portal.

(2) The application under sub-rule (1) which is addressed to the Press Registrar General shall also be endorsed to the specified authority within whose local jurisdiction the periodical is proposed to be published and sent online from the Press Sewa Portal.

(3) Upon successful uploading of the application, the Press Sewa Portal shall generate an acknowledgement along with a unique ten-digit alphanumeric Applicant Reference Number, and the publisher and the Press Registrar General shall use the Applicant Reference Number for all future correspondences and references.

(4) Where the publisher intends to make any corrections or remove any omissions or error in the application furnished under sub-rule (1), he may do so within five days of furnishing such application.

(5) If on verification of the application, the Press Registrar General finds any deficiencies, he shall, within seven working days of receipt of the application, and the further time specified under sub-rule (4), issue an online communication to the publisher specifying the deficiencies.

(6) The publisher shall, within a period not exceeding thirty days of receiving the communication referred to in sub-rule (5), remove all deficiencies by submitting all requisite details and particulars on the Press Sewa Portal and failure to do so within the specified period of thirty days shall render the application liable to be rejected by the Press Registrar General.

(7) The Press Registrar General shall, after verifying the application and taking into consideration comments, if any, received from the specified authority on the Press Sewa Portal and the guidelines regarding admissibility of the title, is satisfied that -

(a) the deficiency has been removed, issue a certificate of registration to the publisher in the format specified in the Press Sewa Portal, and endorse a copy thereof to the specified authority;

(b) the application remains deficient or the deficiencies have not been removed by the publisher within the specified time, issue an online communication to the publisher providing the reasons as to why registration may not be granted and afford ten days' time to the publisher to submit a reply thereto on the Press Sewa Portal.

(8) The Press Registrar General may, after taking into consideration the written reply of the publisher under clause (b) of sub-rule (7), either grant or refuse to grant the certificate of registration of the periodical:

Provided that where the Press Registrar General decides that registration shall be not granted, he shall pass a speaking order specifying the grounds and reasons for the same and communicate it to the publisher on the Press Sewa Portal.

6.

Revision of particulars of certificate of registration.

(1) If any revision in the particulars of the certificate of registration granted to a publisher under Rule 5 is required, such publisher may make an application to the Press Registrar General on the Press Sewa Portal, along with documents specified therein and a fee of rupees one thousand payable to Bharat Kosh through any mode of payment specified therein.

(2) The particulars for which an application for revision of the certificate may be made by the publisher may include: -

(a) the language of the periodical;

(b) the title of the periodical;

(c) the editor of the periodical;

(d) the printing press of the periodical;

(e) the place of publication of the periodical within the State or Union Territory;

(f) the periodicity of the periodical.

(3) If, on the verification of the application made under sub-rule (1), the Press Registrar General finds that there is change in the specified authority due to change in the place of publication under clause (e) of sub-rule (2), he shall, within a period of sixty days from the date of receipt of the application, obtain comments of the specified authority under whose jurisdiction the new place of publication is located, and on being satisfied of the correctness of all particulars in the application, issue a revised certificate of registration in respect of the periodical preferably within fifteen working days of obtaining comments of the specified authority, and endorse a copy to the specified authority.

(4) If the owner of a periodical to whom certificate of registration is granted under rule 5 intends to change the publisher, the new publisher shall make an application for a revised certificate of registration and all the provisions of rule 5 shall apply.

7.

Transfer of ownership of periodical.

(1) Where the owner of a periodical in respect of which certificate of registration has been granted under rule 5 intends to transfer the ownership of that periodical to any other person or entity, such person or entity being the transferee, may apply for change of ownership of the periodical by making an application to the Press Registrar General on the Press Sewa Portal along with the documents specified therein and a fee of rupees one thousand payable to Bharat Kosh through any mode of payment specified therein.

(2) The application made under sub-rule (1) shall also be endorsed by the transferee to the specified authority within whose local jurisdiction the principal place of business of the transferee is situated, and sent online to the specified authority from the Press Sewa Portal.

(3) The Press Registrar General shall verify the application and obtain comments of the new specified authority within a period of sixty days from the date of receipt of application and after being satisfied of the correctness of the application, grant permission for change of ownership of the periodical.

(4) If after taking into consideration the comments of the specified authority and other factors, the Press Registrar General is of the opinion that permission for change of ownership may not be granted, he shall issue an online communication to the owner providing reasons as to why such change of ownership may not be granted and afford ten days' time to the owner to submit a written reply thereto.

(5) The Press Registrar General may, after taking into consideration the written reply of the owner, either permit the change in ownership and issue a written permission for the change on the Press Sewa Portal, or refuse to grant permission for change in ownership:

Provided that where the Press Registrar General decides that permission for change of ownership may be not granted, he shall pass a speaking order specifying the grounds and reasons for the same and communicate it to the owner of the periodical.

(6) Where the application for transfer is limited only to the change in ownership of the periodical, the Press Registrar shall issue a revised certificate of registration:

Provided that where the change in ownership involves change in any other particulars of the periodical, the publisher or the new publisher, as the case may be, shall make an application for grant of registration in the manner provided in rule 5, within thirty days of the receipt of the permission for change of ownership granted under sub-rule (3).

(7) Where the owner of a periodical is a company registered under the Companies Act, 2013 (18 of 2013) and the shareholding pattern of the company undergoes any change from the shareholding pattern at the time of grant of certificate of registration of the periodical under these rules, the authorised person in the company shall intimate the Press Registrar General on the Press Sewa Portal of the changes made, giving full details of the names, address and other particulars of the new shareholders, along with such other documents specified in the Press Sewa Portal.

8.

Discontinuation of a periodical.

Where an owner of a periodical, who has been granted a certificate of registration under these rules decides to discontinue the publication of the periodical, he shall, within six months of such discontinuation, send an online intimation to the Press Registrar General and the specified authority, on the Press Sewa Portal.

9.

Annual statement.

(1) A publisher who has been granted a certificate of registration under these rules shall furnish an annual statement by the 31st May of a calendar year, in respect of the preceding financial year, on the Press Sewa Portal, containing the particulars and documents specified on that Portal.

(2) Where the publisher, due to circumstances beyond his control, is unable to furnish the annual statement within the time mentioned in sub-rule (1), he may, with the prior approval of the Press Registrar General, furnish the annual statement within such extended period as the Press Registrar General may permit, having regard to the circumstances for such delay but no such extension shall be granted beyond 31st December of the calendar year.

10.

Delivery of periodicals.

(1) The publisher shall, within forty-eight hours of publication of a newspaper, upload the electronic version of the newspaper on the Press Sewa Portal.

(2) The publisher in a State or Union Territory shall deliver the physical copy of the newspaper to the office of the Press Information Bureau located in that State or Union Territory in which the paper is being published, by the fifth day of every month for the all the days for which the newspaper is published during the preceding month:

Provided that the publisher may deliver a copy of the newspaper to the office of the Press Information Bureau at a more frequent interval.

Provided further that in a State or Union Territory where there is no office of Press Information Bureau, the Press Registrar General shall authorise an officer under the Central Government in the Ministry of Information and Broadcasting in that State or Union Territory for receiving the newspaper from the publisher.

(3) The newspapers published in the National Capital Territory of Delhi Region will be delivered at the office of the Press Registrar General in New Delhi.

(4) The publisher in a State or Union Territory shall deliver the physical copy of the newspaper to such office of the State Government or the Union Territory administration so authorised for the purpose by that State Government or the Union Territory administration, by the fifth day of every month for all the days for which the newspaper is published during the

preceding month:

Provided that the publisher may deliver a copy of the newspaper to the office so authorised by the State Government or Union Territory administration, at a more frequent interval.

(5) Compliance of sub-rules (1) to (4) shall be taken into consideration for the purpose of ascertaining whether the newspaper is being published continuously.

11.

Verification of circulation figure of a periodical by the Press Registrar General.

(1) The Press Registrar General may verify the circulation figure of a periodical, in the manner laid down under this rule, in respect of the following classes and category of periodicals: -

(a) a daily newspaper, having an average circulation of twenty-five thousand copies or more each day, as reported in the annual statement furnished by such newspaper in the preceding two financial years, and is empanelled with the Central Bureau of Communication for the purpose of obtaining advertisements of the Central Government;

(b) a daily newspaper, having an average circulation of twenty-five thousand copies or more each day, as reported in the annual statement furnished by such newspaper in the preceding two financial years, and intends to be empanelled with the Central Bureau of Communication for the purpose of obtaining advertisements of the Central Government; and

(c) any other periodical which, in the opinion of the Press Registrar General, and for reasons to be recorded by him in writing, requires such verification, having regard to any information, reference or complaint received by him in respect of that periodical.

(2) For the purposes of verifying the circulation of a periodical referred to in sub-rule (1), the Press Registrar General or any officer of the Central Government so authorised by him, may undertake a desk audit of the information furnished by the publisher in the latest annual statement in accordance with procedure laid down in the Press Sewa Portal, and determine the circulation figure:

Provided that the Press Registrar General or the officer so authorised, may, for undertaking the desk audit, seek such information or documents as may be considered necessary, through electronic mode and the publisher shall provide such information or documents electronically:

Provided further that the desk audit shall be undertaken in a faceless manner where there is no physical interface between the publisher and the Press Registrar General or the officer authorised for undertaking the desk audit.

Explanation: - For the purpose of undertaking desk audit under sub-rule (2), the latest annual statement shall be the annual statement of the periodical furnished for the immediately preceding financial year or the year immediately before that, whichever is latest.

(3) The Press Registrar General may undertake verification of the circulation of a periodical by way of physical inspection of the documents and other information and records at the business premises of the publisher and the printing press only under the following situations, namely:

(a) where the publisher is not regularly furnishing the annual statement as required under section 12;

(b) where the desk audit undertaken under sub-rule (2) recommends such physical verification due to exceptional circumstances, and the Press Registrar General is satisfied with such recommendations;

(c) where, in the opinion of the Press Registrar General, and for reasons to be recorded in writing, such verification is necessary, having regard to any information, reference or complaint received by him in respect of that periodical.

Related AI tags, queries and research notes

Translation